

WEINSTEIN MANAGEMENT CO.,
INC. AND WMCI DALLAS X, LLC,
Plaintiffs and Counter-Defendants,

v.

KATHRYN COPELAND,
Defendant and Counter-Plaintiff.

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IN THE DISTRICT COURT OF

TARRANT COUNTY, TEXAS

141ST JUDICIAL DISTRICT

**DEFENDANT’S AMENDED MOTION FOR STATUTORILY REQUIRED
COMPLIANCE WITH FHA, ADA, AND TEXAS FAIR HOUSING ACT
(MINISTERIAL)**

COMES NOW Defendant Kathryn Copeland and respectfully requests that the Court issue a **ministerial order** requiring Plaintiffs to comply with **nondiscretionary federal and state disability-rights statutes**. This motion **requires no evidentiary hearing**, because the statutes invoked impose **mandatory duties** once notice of disability and accommodation is provided.

The Court’s task here is not to weigh competing evidence.

It is to apply **clear statutory commands** that leave no room for discretion.

I. MINISTERIAL DUTY OF THE COURT

Texas law is unequivocal:

A trial court “**has no discretion in determining what the law is or in applying the law to the facts.**”

— *Anderson v. City of Seven Points*, 806 S.W.2d 791, 793 (Tex. 1991).

A judicial act is **ministerial** when a statute imposes a **clear, nondiscretionary obligation**.

— *In re Daly*, 148 S.W.3d 578, 580 (Tex. App.—El Paso 2004) (mandatory statutory venue transfer = ministerial duty).

Here, the Fair Housing Act (FHA), Americans with Disabilities Act (ADA), and Texas Fair Housing Act (TFHA) all use **mandatory** statutory language (“shall,” “must not discriminate,” “must make reasonable accommodations”). Courts do not have discretion to decline enforcement of these statutes when a violation is established or when a plaintiff’s own documents confirm the duty.

This motion asks the Court to enforce only those mandatory duties.

II. LEGAL FRAMEWORK — NONDISCRETIONARY DUTIES

1. Fair Housing Act — Mandatory Accommodation Duty

42 U.S.C. § 3604(f)(3)(B) defines refusal to make reasonable accommodations as **discrimination as a matter of law**.

Once disability and need are known, the duty to accommodate is **mandatory**, not optional.

2. Texas Fair Housing Act (Tex. Prop. Code ch. 301)

Texas law mirrors the FHA and prohibits:

- discrimination,
- failure to accommodate, and
- retaliation *after* a tenant exercises protected rights.

These duties are statutory and nondiscretionary.

3. FHA Retaliation Prohibition — § 3617

The statute forbids coercion, intimidation, threats, and retaliation **because** a disabled tenant requested accommodations. Enforcement is not discretionary.

4. Texas Anti-Retaliation Statutes (Tex. Prop. Code §§ 92.331–.335)

While these provisions apply directly in eviction cases, courts treat retaliation as a **complete defense** when established. Courts have no discretion to overlook retaliation.

5. Mold-related Duties

Texas Occupations Code ch. 1958 and the Mold Remediation rules require:

- licensed remediation,
- adherence to a written protocol, and
- issuance of a **Certificate of Mold Remediation** within 10 days of completion.

These are **mandatory “shall” duties**.

III. UNDISPUTED FACTS TRIGGERING THE MINISTERIAL DUTY

The following facts are **drawn from Plaintiffs’ own documents**, judicially noticeable filings, or licensed reports:

- **June 18, 2025:** Plaintiffs’ licensed assessor declared Unit 2145 “**not fit for human occupancy.**”
- **March 5, 2025–present:** Defendant disclosed multiple disabilities and medical vulnerabilities.
- **June 27 & June 30, 2025:** Defendant made formal ADA/FHA accommodation requests.
- **July–October 2025:** Plaintiffs admitted ongoing “remediation work.”

- **October 27, 2025:** Plaintiffs terminated disability accommodations (hotel housing) while remediation remained incomplete.
- **November 6, 2025:** Plaintiffs issued a Notice to Vacate and rent demands for a unit they admit remained uninhabitable.
- Plaintiffs have no Certificate of Mold Remediation, no licensed contents assessment, and no safe housing option provided to Defendant.

These facts are **undisputed** for purposes of this motion and are not dependent on witness testimony.

Thus, **no evidentiary hearing is required.**

IV. REQUESTED MINISTERIAL RELIEF

Because these obligations arise **by statute**, not judicial discretion, Defendant requests the Court issue a **ministerial order** requiring Plaintiffs to:

1. Reinstate ADA/FHA Housing Accommodation

Provide temporary housing comparable to what Plaintiffs provided from July–October 2025 **until**:

- licensed remediation is completed, and
- a Certificate of Mold Remediation has issued.

2. Provide Licensed Contents Assessment

Order Plaintiffs to make Defendant’s belongings available to a **TDLR-licensed contents assessor** for determination of salvageability and safety.

3. Cease Disability-Based Retaliation

Order Plaintiffs to suspend:

- rent demands for an uninhabitable unit,
- eviction efforts stemming from disability-related issues, and
- any conduct prohibited by FHA § 3617.

These are **not discretionary remedies** — they give effect to mandatory federal and state statutory commands.

V. INCORPORATION OF PRIOR FILINGS

Defendant incorporates the following filings already before the Court:

- **September 29, 2025 Emergency Motion**
- **Proposed TRO** (not signed)
- **November 23, 2025 Motion for Appointment of Counsel**
- **December 1, 2025 Motion for Statutory Accommodations**

The issues raised today were raised repeatedly and remain unaddressed.

VI. PRAYER

Defendant respectfully requests that the Court:

1. Grant this Motion;
2. Issue the accompanying Proposed Order;
3. Require Plaintiffs to comply with all nondiscretionary statutory obligations under FHA, ADA, and TFHA.

Respectfully submitted,



KATHRYN COPELAND

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Defendant and Counter-Plaintiff

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CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of this motion was served on December 3, 2025
via electronic service to:

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KATHRYN COPELAND